

25VECV06512 25VECV06512

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-08

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Case Number: 25VECV06512 Hearing Date: September 8, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

EMEKA PETER,

Plaintiff,

vs.

STONE | DEAN LLP, a California law firm; SUZANNE R. FEFFER, ESQ.; and DOES 1-100, inclusive,

Defendants.

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CASE NO.: 25VECV06512

ORDER DENYING IN PART PLAINTIFF'S MOTION TO CONTINUE

I. BACKGROUND

Plaintiff Emeka V. Peter ("Plaintiff") alleges Defendant Stone|Dean LLP ("Stone"), a law firm, through Suzanne R. Feffer, Esq. ("Feffer"), an attorney employed by Stone, (jointly "Defendants") disclosed Plaintiff's personal information, including his social security number, in a publicly accessible court filing. (See First Amended Complaint ("FAC") at 3:1-13.)

Plaintiff now moves for an order continuing the Case Management Conference, Order to Show Cause re: Sanctions Against Plaintiff for Failure to Serve Defendant Suzanne R. Feffer, and Stone's Motion for Summary Judgment.

II. PROCEDURAL HISTORY

On November 13, 2025, Plaintiff filed his Complaint.

On November 24, 2025, Plaintiff filed his First Amended Complaint alleging (1) Negligence; (2) Negligent Infliction of Emotional Distress; (3) Invasion of Privacy; (4) Violation of Civil Code Vs §1798.81.5; (5) Intentional Infliction of Emotional Distress; (6) Negligence Per Se; (7) Breach of Confidentiality; (8) Intrusion Upon Seclusion; (9) Violation of California Constitutional Right to Defendants. Privacy; (10) Unfair Business Practices (Bus. & Prof. Code §17200); (11) Willful Misconduct; (12) Breach of Fiduciary Duty; (13) Legal Malpractice; (14) Declaratory & Injunctive Relief.

On January 16, 2026, Stone filed its Answer.

On March 3, 2026, the Court denied Plaintiff's Motion for Order to Permit Media Coverage.

On April 14, 2026, the Court denied Plaintiff's Ex Parte Application for Order to Prohibit Defendants from Interfering with Plaintiff's Access to Evidence.

On May 19, 2026, the Court granted Defendant's Motion to Deem Requests for Admissions Admitted, denied Plaintiff's Motion for Leave to File Second Amended Complaint, denied Plaintiff's Motion for Order Permitting Access to Sealed Record, and continued the Plaintiff's Motion to Deem Requests for Admission Admitted as to Feffer.

On June 22, 2026, the Court denied Plaintiff's Motion to Deem Requests for Admission Admitted as to Feffer.

On August 6, 2026, Plaintiff filed a document purporting to be the instant Motion to Continue.

On August 24, 2026, Stone filed an Opposition.

On September 2, 2026, Plaintiff filed the instant Motion.

As of September 4, 2026, no reply has been filed.

III. LEGAL STANDARD

"If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due." (Code Civ. Proc. § 437c(h).) [1]

IV. JUDICIAL NOTICE

The Court denies Stone's Request for Judicial Notice of an order declaring Plaintiff a vexatious litigant in Case No. 23VECV05342 for lack of relevance. "[A] precondition to the taking of judicial notice in either its mandatory or permissive form – any matter to be judicially noticed must be relevant to the material issue." (People ex rel. Lockyer v. Shamrock Foods Co. (2000) 24 Cal.4th 415, 422 fn. 2 (citing Mangini v. RJ. Reynolds Tobacco Co. (1994) 7 Cal.4th 1057, 1063, overruled by In re Tobacco Cases II (2007) 41 Cal.4th 1257 on other grounds).) Here, the order declaring Plaintiff a vexatious litigant was not issued until June 3, 2026. The consequences of being declared a vexatious litigant impact a litigant's ability to continue with the action in which it was declared a vexatious litigant and their ability to file new cases after such declaration. (See, e.g., Code of Civ. Proc. §§ 391.3 and 391.7.) The Code says nothing of its impact on other already pending cases. Therefore, the Court will deny Stone's Request for Judicial Notice.

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V. ANALYSIS

The Court will deny Plaintiff's Motion. Plaintiff requests an order continuing the Case Management Conference and Order to Show Cause re: Sanctions scheduled for September 15, 2026, the Motion for Summary Judgment scheduled for September 29, 2026, and related filing deadlines pending Plaintiff's retention of counsel. Plaintiff contends he is actively attempting to

retain counsel as “the legal issues presented require professional legal representation.” (See Mot. at 3:14-17.)

The Court agrees with Stone that granting the requested relief is not warranted. The Court agrees Plaintiff has had ample time to secure counsel, and Plaintiff provides no definite date for when he might achieve this or a declaration from potential counsel establishing good cause for the continuance. (See Opp. at 3:6-12.) Thus, Plaintiff has not shown good cause for continuance of the hearing dates is warranted.

The Court also agrees Plaintiff does not satisfy Code of Civil Procedure § 437c(h). (See id., at 4:2-9.) Plaintiff’s declaration does not support a finding “that facts essential to justify opposition may exist but cannot, for reasons stated, be presented”. (Code Civ. Proc. § 437c(h).) Of course, since his opposition to the Motion for Summary Judgment isn’t due until tomorrow, see Code of Civ. Proc. § 437c(b)(2), this finding is without prejudice to Plaintiff’s ability to provide such facts in his opposition. Accordingly, a continuance of the Motion for Summary Judgment because Plaintiff is attempting to secure counsel is also not warranted.

However, in the interests of judicial efficiency and to reduce the number of court appearances for the parties, the Court will continue the Case Management Conference and Order to Show Cause currently scheduled for September 15, 2026, to September 29, 2026, at 8:30 a.m.

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VI. CONCLUSION

Based on the foregoing, the Court DENIES IN PART Plaintiff’s Motion.

Although the Court denies the specific relief Plaintiff seeks in his Motion, in the interests of judicial efficiency and to reduce the number of court appearances for the parties, the Court will continue the Case Management Conference and Order to Show Cause currently scheduled for September 15, 2026, to September 29, 2026, at 8:30 a.m.

IT IS SO ORDERED.

DATED: September 8, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.